

HOUSE BILL No. 1114

DIGEST OF INTRODUCED BILL

Citations Affected: IC 5-10-8-18.5; IC 27-8-5-32; IC 27-13-7-29.5.

Synopsis: Coverage for certain cancer prescriptions. Prohibits a state employee health plan, a policy of accident and sickness insurance, and a health maintenance organization that provides coverage for advanced, metastatic cancer and associated conditions from requiring that, before providing coverage for a prescription drug, the insured fail to successfully respond to a different prescription drug or prove a history of failure of a different prescription drug.

Effective: July 1, 2026.

Pryor

January 5, 2026, read first time and referred to Committee on Insurance.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1114

A BILL FOR AN ACT to amend the Indiana Code concerning insurance.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 5-10-8-18.5 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 18.5. (a) This section applies only to a prescription**
4 **drug that is:**

5 (1) **consistent with best practices for the treatment of**
6 **advanced, metastatic cancer or an associated condition;**

7 (2) **supported by peer reviewed, evidence based literature;**
8 **and**

9 (3) **approved by the federal Food and Drug Administration.**

10 (b) **As used in this section, "advanced, metastatic cancer" means**
11 **cancer that has spread from the primary or original site of the**
12 **cancer to nearby tissues, lymph nodes, or other areas or parts of**
13 **the body.**

14 (c) **As used in this section, "associated conditions" means the**
15 **symptoms or side effects associated with advanced, metastatic**
16 **cancer or its treatment, which would, in the judgment of a health**
17 **care practitioner, further jeopardize the health of the covered**



individual if left untreated.

(d) As used in this section, "covered individual" means an individual entitled to coverage under a state employee health plan.

(e) As used in this section, "state employee health plan" refers to the following that provide coverage for prescription drugs:

(1) A self-insurance program established under section 7(b) of this chapter.

(2) A contract with a prepaid health care delivery plan that is entered into or renewed under section 7(c) of this chapter.

(f) A state employee health plan that provides coverage for advanced, metastatic cancer and associated conditions may not require that, before the state employee health plan provides coverage for a prescription drug, the covered individual:

(1) fail to successfully respond to a different prescription drug; or

(2) prove a history of failure of a different prescription drug.

SECTION 2. IC 27-8-5-32 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 32. (a) This section applies only to a prescription drug that is:

(1) consistent with best practices for the treatment of advanced, metastatic cancer or an associated condition;

(2) supported by peer reviewed, evidence based literature; and

(3) approved by the federal Food and Drug Administration.

(b) As used in this section, "advanced, metastatic cancer" means cancer that has spread from the primary or original site of the cancer to nearby tissues, lymph nodes, or other areas or parts of the body.

(c) As used in this section, "associated conditions" means the symptoms or side effects associated with advanced, metastatic cancer or its treatment, which would, in the judgment of a health care practitioner, further jeopardize the health of the insured if left untreated.

(d) As used in this section, "insured" means an individual who is entitled to coverage under a policy of accident and sickness insurance.

(e) As used in this section, "policy of accident and sickness insurance" means a policy of accident and sickness insurance that provides coverage for prescription drugs.

(f) A policy of accident and sickness insurance that provides coverage for advanced, metastatic cancer and associated conditions



1 may not require that, before the policy of accident and sickness
2 insurance provides coverage for a prescription drug, the insured:

3 (1) fail to successfully respond to a different prescription
4 drug; or

5 (2) prove a history of failure of a different prescription drug.

6 SECTION 3. IC 27-13-7-29.5 IS ADDED TO THE INDIANA
7 CODE AS A NEW SECTION TO READ AS FOLLOWS
8 [EFFECTIVE JULY 1, 2026]: **Sec. 29.5. (a) This section applies only**
9 **to a prescription drug that is:**

10 (1) consistent with best practices for the treatment of
11 advanced, metastatic cancer or an associated condition;

12 (2) supported by peer reviewed, evidence based literature;
13 and

14 (3) approved by the federal Food and Drug Administration.

15 (b) As used in this section, "advanced, metastatic cancer" means
16 cancer that has spread from the primary or original site of the
17 cancer to nearby tissues, lymph nodes, or other areas or parts of
18 the body.

19 (c) As used in this section, "associated conditions" means the
20 symptoms or side effects associated with advanced, metastatic
21 cancer or its treatment, which would, in the judgment of a health
22 care practitioner, further jeopardize the health of the enrollee if
23 left untreated.

24 (d) As used in this section, "group contract" refers to a group
25 contract that provides coverage for prescription drugs.

26 (e) As used in this section, "health maintenance organization"
27 refers to a health maintenance organization that provides coverage
28 for prescription drugs. The term includes the following:

29 (1) A limited service health maintenance organization.

30 (2) A person that administers prescription drug benefits on
31 behalf of a health maintenance organization or a limited
32 service health maintenance organization.

33 (f) As used in this section, "individual contract" refers to an
34 individual contract that provides coverage for prescription drugs.

35 (g) A health maintenance organization that provides coverage
36 under an individual contract or a group contract for advanced,
37 metastatic cancer and associated conditions may not require that,
38 before the health maintenance organization provides coverage for
39 a prescription drug, the enrollee:

40 (1) fail to successfully respond to a different prescription
41 drug; or

42 (2) prove a history of failure of a different prescription drug.

